2. Non-Western societies were expected to adopt the same forms of government as the West so as to protect the freedoms and property of Western nationals within their territories. This effectively meant the gradual universalisation of the idea of a constitutional form of government with three identified organs, namely the legislature, the executive and the judiciary, whose metes and bounds were determined by the doctrine of separation of powers. The theoretical foundations of the same were provided by Enlightenment thinkers, such as Baron de Montesquieu and John Locke, in the eighteenth century. As part of this expectation, codification of laws, which could be administered by courts set up on the same lines as courts in the West, was deemed mandatory so as to protect the property rights of Western nationals. This had the Lockean influence written all over it;
3. Non-Western societies were expected to reorganise themselves in a manner beneficial to the individual freedoms of Western nationals, although such nationals were immune to the application of domestic civil and criminal laws, being answerable exclusively to the consulates of Western governments. The basis for this position was distinctly supremacist and racist, that is, non-Western nations were not 'civilised', and therefore Western nationals could not be subjected to the 'uncivilised' political and legal systems of the non-West;
4. Non-Western societies were expected to have the capacity to defend their borders/territories against external aggression apart from subscribing to the Westphalian model of international diplomacy and State sovereignty, which included non-interference in the domestic affairs of other nation-states; and
5. Not only were non-Western societies expected to abide by the principles of 'international law' and become 'nation-states' that subscribed to 'the rule of law' with regard to Western nationals, they were also expected to conform domestically to the norms, mores and customs recognised in and by Western societies.

Effectively, European imperial powers gained extraterritorial jurisdiction over non-Western societies through application of international law, which was nothing but the enforcement of Protestant Reformation-inspired Westphalian principles.[25] In the third section of this book, which relates to Bharat's constitutional journey, this subject is addressed in greater detail to